



Section 314(b) Fact Sheet

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The U.S. Department of the Treasury's (Treasury) Financial Crimes Enforcement Network (FinCEN) is issuing this fact sheet in support of Treasury's efforts to promote greater information sharing between and among financial institutions to identify fraud, money laundering, terrorist financing, narcotics trafficking and related crimes, sanctions evasion, and other criminal activity. This fact sheet further clarifies: (1) the permissibility of real-time information sharing under section 314(b) of the USA PATRIOT Act; (2) under what circumstances information, including related to fraud, can be shared; and (3) how information can be shared. This fact sheet expands upon and replaces FinCEN's December 2020 fact sheet.¹

What is section 314(b)?

Section 314(b) provides financial institutions with the ability to share information with one another, under a safe harbor that offers protections from liability, to improve the identification and reporting of activities that may involve money laundering or terrorist activities.² Participation in information sharing pursuant to section 314(b) is voluntary. FinCEN strongly encourages financial institutions to participate in the program as information sharing between and among financial institutions can assist financial institutions in managing illicit financing risks and can ultimately provide the government with highly useful information to identify and prevent financial crime.³

Among other things, information sharing pursuant to section 314(b) allows financial institutions to respond to threats—activities a financial institution suspects may involve possible terrorist activity or money laundering, such as fraud and other criminal activity—that are carried out by repeat actors moving across financial institutions to evade detection. The section 314(b) program provides financial institutions with the flexibility and connectivity needed to counter these threats and prevent bad actors from exploiting gaps between institutions.

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1. FinCEN, Section 314(b) Fact Sheet (Dec. 2020), www.fincen.gov/system/files/2026-06/314bfactsheet-12-2020.pdf.
 2. See Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001 (USA PATRIOT Act), Pub. L. No. 107-56, 115 Stat. 272 (Oct. 26, 2001), § 314(b); 31 C.F.R. §§ 1010.540(a), (b)(5).
 3. See, e.g., FinCEN, FIN-2025-G001, Cross-Border Information Sharing by Financial Institutions and SAR Confidentiality (Sept. 5, 2025), www.fincen.gov/system/files/2025-09/Crossborderguidance-508C.pdf.

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Sharing Information Involving Terrorism, Money Laundering, Fraud, and Other Activities

What information can be shared pursuant to section 314(b)?

Financial institutions and associations of financial institutions may rely on the safe harbor provided by section 314(b) to share information with one another regarding individuals, entities, organizations, and countries for purposes of identifying and, where appropriate, reporting activities that may involve possible terrorist activity or money laundering (which, as discussed below, may include information about fraud and other specified unlawful activities (SUAs)).

A financial institution or association of financial institutions may, under the protection of the section 314(b) safe harbor, share information about activity that a financial institution or association of financial institutions suspects may involve possible money laundering (which, as discussed below, may include information about fraud and other SUAs) or terrorist financing. It is sufficient for a financial institution or association of financial institutions to transmit, receive, or otherwise share information with any other financial institution or association of financial institutions regarding individuals, entities, organizations, and countries for purposes of identifying and, where appropriate, reporting any activities that the financial institution or association of financial institutions suspects may involve possible terrorist activity or money laundering.

“Money laundering” includes knowingly conducting or attempting to conduct a financial transaction with proceeds from SUA that is intended to promote the SUA.⁴ Activity constituting “specified unlawful activity” is defined in 18 U.S.C. § 1956, which lists the predicate crimes for money laundering offenses. These SUAs include a range of fraud offenses, including federal statutes used to charge schemes involving fraud against individuals, organizations, or governments.⁵ Accordingly, if a financial institution or association of financial institutions suspects that a transaction may involve the proceeds of fraud (or other criminal activity) or be for the purpose of furthering or concealing a fraudulent scheme or other criminal activity, then it may share related information with other financial institutions or associations of financial institutions under section 314(b).

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4. See 18 U.S.C. § 1956(a)(1)(A)(i). Money laundering also includes, among other things, financial transactions involving proceeds of SUA where transactions are designed to conceal or disguise the nature, location, source, ownership or control of proceeds of SUA; avoid a reporting requirement under state or federal law; or evade taxes. See 18 U.S.C. § 1956(a)(1)(A)(ii), (B); see also 18 U.S.C. §§ 1956(a)(2)–(3), (b)–(j), 1957.
 5. Fraud offenses constituting specified unlawful activity include, but are not limited to, mail fraud, wire fraud, bank fraud, health care fraud offenses, securities fraud, and fraud connected to unauthorized access of a protected computer. See 18 U.S.C. § 1956(c)(7). Mail and wire fraud, in particular, can cover a range of fraudulent activity. See, e.g., 18 U.S.C. § 1343 (criminalizing “having devised or intending to devise any scheme or artifice to defraud or for obtaining money or property by means of false or fraudulent pretenses” that includes use of a wire).

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A financial institution or association of financial institutions may also, under the protection of the section 314(b) safe harbor, share information related to activities that may involve possible terrorist activity or money laundering even if such activities do not constitute a “transaction,” as defined in 31 C.F.R. § 1010.100(bbb) or elsewhere. For example, a financial institution or association of financial institutions may share information on *attempts* to engage in transactions that the financial institution or association of financial institutions suspects may involve money laundering or terrorist activity. A financial institution or association of financial institutions may also share information about attempts to induce others to engage in transactions, such as in a money mule scheme, where the other conditions of section 314(b) are satisfied.

The Bank Secrecy Act (BSA) imposes no limitations on the sharing of personally identifiable information under the section 314(b) safe harbor where such sharing is otherwise consistent with section 314(b) and its implementing regulations. Additionally, with the exception of suspicious activity reports (SARs), as discussed below, neither section 314(b) nor its implementing regulations impose restrictions on the types of information that may be shared. Financial institutions and associations of financial institutions could share, for example, transaction information; video surveillance footage; cyber-related data (such as IP addresses and geolocations); device identification numbers; decisions related to account creation, maintenance, closure, or services (and related research and analytical materials); transaction monitoring system alerts; and indicators that activity may be suspicious, including newly added payees followed by large transfers, multiple accounts with the same or similar identifying information, and login activity from geographically distant locations.

Moreover, the BSA imposes no limitations on how information can be shared. Financial institutions and associations of financial institutions may share information in writing or verbally, as well as through electronic platforms. Sharing may occur between one financial institution or association of financial institutions and another, or financial institutions and associations of financial institutions may share information within a group of participating financial institutions or associations of financial institutions. Regardless of how information is shared, financial institutions and associations of financial institutions must maintain adequate procedures to protect the security and confidentiality of all information shared pursuant to section 314(b) and may only use such information for specified purposes.⁶

In cases where a financial institution files a SAR that has benefited from section 314(b) information sharing, FinCEN encourages financial institutions to note this in the narrative to allow FinCEN to identify and communicate specific examples of the benefits of the section 314(b) program. As discussed below, financial institutions sharing information pursuant to section 314(b) may work together to file joint SARs. While a financial

6. See 31 C.F.R. § 1010.540(b)(4)(i)-(ii).

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institution or association of financial institutions may share information related to possible terrorist financing or money laundering that has resulted in or may result in a SAR, section 314(b) does not authorize financial institutions to share SARs or reveal their existence.⁷

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Can a financial institution or association of financial institutions share information related to fraud under section 314(b)?

Yes. Fraud offenses are SUAs for money laundering offenses. Accordingly, if a financial institution or association of financial institutions suspects that the information involves a fraud offense (or any other SUA), and the requirements for participation in section 314(b) information sharing are otherwise met, then such information sharing would be covered by the section 314(b) safe harbor. The financial institution or association of financial institutions need not have identified specific proceeds of fraud being laundered to trigger the protections of the section 314(b) safe harbor, which extends to sharing information where a financial institution “suspect[s] possible terrorist or money laundering activities,” including fraud activity that may be an SUA for money laundering purposes.

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Can a section 314(b)-registered financial institution or association of financial institutions share information with another section 314(b)-registered financial institution or association of financial institutions, even if the entity sharing the information has no reason to believe the information relates to any specific customer, account, or transaction of the financial institution receiving the information (or, if an association of financial institutions is receiving the information, the association’s member financial institutions)?

Yes. A financial institution or association of financial institutions may share, under section 314(b), any information that the financial institution or association of financial institutions suspects may involve possible terrorist activity or money laundering. Such information may include information that relates to any specific customer, account, or transaction of the financial institution receiving the information (or, if an association of financial institutions is receiving the information, the association’s member financial institutions). Receiving financial institutions or associations of financial institutions may use such information as permitted under 31 C.F.R. § 1010.540(b)(4)(i).

For example, such information could be shared with and used by the receiving financial institution to strengthen its anti-money laundering and countering the financing of terrorism (AML/CFT) program’s capability to identify and, where appropriate, report

7. The BSA and FinCEN’s implementing regulations prohibit the sharing of a SAR or any information that would reveal the existence or non-existence of a SAR, except as permitted by statute or regulation. *See, e.g.,* 31 U.S.C. § 5318(g)(2)(A); 31 C.F.R. § 1020.320(e) (banks).

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on money laundering or terrorist activities, including by incorporating the received information into its transaction monitoring system. More generally, the receiving financial institution could use such information to comply with any of its obligations under the BSA and its implementing regulations. Notably, the regulation implementing section 314(b) contemplates that a financial institution receiving information may not have an existing relationship with an individual or entity about which it receives information and expressly permits, among other things, the use of information for the purpose of “[d]etermining whether to establish or maintain an account, or to engage in a transaction.”⁸ Both the sharing party and the receiving party must maintain adequate procedures to protect the information’s security and confidentiality as required under 31 C.F.R. § 1010.540(b)(4)(ii).

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Participating Financial Institutions and Associations of Financial Institutions

Who is eligible to participate in section 314(b) information sharing?

Financial institutions subject to an anti-money laundering program requirement under FinCEN regulations, and any association of such financial institutions, are eligible to share information under section 314(b). This currently includes:

- Banks (31 C.F.R. § 1020.540)
- Casinos and Card Clubs (31 C.F.R. § 1021.540)
- Money Services Businesses (31 C.F.R. § 1022.540)
- Brokers or Dealers in Securities (31 C.F.R. § 1023.540)
- Mutual Funds (31 C.F.R. § 1024.540)
- Insurance Companies (31 C.F.R. § 1025.540)
- Futures Commission Merchants and Introducing Brokers in Commodities (31 C.F.R. § 1026.540)
- Dealers in Precious Metals, Precious Stones, or Jewels (31 C.F.R. § 1027.540)
- Operators of Credit Card Systems (31 C.F.R. § 1028.540)
- Loan or Finance Companies (31 C.F.R. § 1029.540)
- Housing Government Sponsored Enterprises (31 C.F.R. § 1030.540)
- Associations consisting of the financial institutions listed above

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8. 31 C.F.R. § 1010.540(a)(4)(i)(B).

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Can an entity that is not a financial institution under the BSA and its implementing regulations, such as a compliance services provider, form and operate an association of financial institutions whose members can engage in information sharing covered by the section 314(b) safe harbor?

Yes. FinCEN does not require the organization that forms and operates an association of financial institutions whose members engage in information sharing protected by the section 314(b) safe harbor to itself be a regulated financial institution under the BSA and its implementing regulations. Furthermore, there is no section 314(b) requirement that an entity forming and operating an association of financial institutions be a subsidiary or corporate affiliate of a financial institution.

Any entity forming an association of financial institutions must, of course, conform its activities with the other requirements of section 314(b), including the use and security requirements of 31 C.F.R. § 1010.540(b)(4).

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Can an unincorporated association of financial institutions governed by a contract among the group of financial institutions that constitutes its members engage in information sharing covered by the section 314(b) safe harbor?

Yes. Section 314(b) permits unincorporated associations to engage in information sharing pursuant to the section 314(b) safe harbor. Such unincorporated associations can exist based on contracts among their participants. Of course, such unincorporated associations must conform their membership and activities to the requirements of section 314(b) and its implementing regulations. All members of such an unincorporated association must be financial institutions consistent with the definition of that term in 31 C.F.R.

§ 1010.540(a)(1). Furthermore, an unincorporated association of financial institutions must operate in compliance with other requirements of section 314(b), including the use and security requirements of 31 C.F.R. § 1010.540(b)(4).

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Benefits and Use of the Section 314(b) Program

What are the benefits of information sharing under section 314(b)?

The section 314(b) program helps financial institutions improve detection of money laundering and terrorist financing and generally enhances their AML/CFT programs. For example, financial institutions can use the section 314(b) program to:

- Share information about fraud and consumer scams and other crimes that occur rapidly and are often carried out by repeat actors who move across financial institutions to evade detection.

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- Gather additional information on customers or transactions potentially related to money laundering or terrorist financing, including previously unknown accounts, activities, and/or associated entities or individuals.
- Shed more light upon overall financial trails, especially if they are complex and appear to be layered among numerous financial institutions, entities, and jurisdictions.
- Build a more comprehensive and accurate picture of a customer's activities that may involve money laundering or terrorist financing, allowing for more precise decision-making in due diligence and transaction monitoring.
- Alert other participating financial institutions to customers of whose suspicious activities they may not previously have been aware.
- Alert other participating financial institutions in real time to transactions that may be connected to money laundering or terrorist financing.
- Facilitate the filing of more comprehensive SARs than would otherwise be filed in the absence of section 314(b) information sharing.
- Identify and aid in the detection of money laundering and terrorist financing methods and schemes.
- Facilitate efficient SAR reporting decisions—for example, when a financial institution obtains a more complete picture of activity through the information sharing process and determines that no SAR is required for transactions that may have initially appeared suspicious.⁹

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Do section 314(b) and its implementing regulations specify the method by which information must be shared?

No. Provided that information sharing is consistent with the use and security of information requirements contained in 31 C.F.R. § 1010.540(b)(4), neither section 314(b) nor FinCEN's implementing regulations specify the method by which information must be shared. As discussed above, financial institutions and associations of financial institutions may, for example, share information in writing or verbally, or they may use electronic platforms. Similarly, financial institutions and associations of financial institutions may share information in real time as activity is occurring.

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9. For more information on the benefits of information sharing under section 314(b), including examples of how SAR narratives have referenced section 314(b), see FinCEN, Information Sharing Insights – 314(b) Participation and Reporting (July 2022), [www.fincen.gov/system/files/shared/314\(b\)%20Infographic%20-%20Participation%20and%20Reporting%20CY2020.pdf](https://www.fincen.gov/system/files/shared/314(b)%20Infographic%20-%20Participation%20and%20Reporting%20CY2020.pdf).

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Can a financial institution or association of financial institutions share information with a foreign financial institution, such as a foreign affiliate or subsidiary?

It depends. As applicable to section 314(b), FinCEN's implementing regulations define "financial institution" as any financial institution described in 31 U.S.C. § 5312(a)(2) that is required under 31 C.F.R. Chapter X to establish and maintain an anti-money laundering program or that is treated under 31 C.F.R. Chapter X as having satisfied the requirements of 31 U.S.C. § 5318(h)(1). While this will generally refer to a financial institution located within the United States, it may, in certain circumstances, include a financial institution located outside of the United States that is required under FinCEN's regulations to establish and maintain an anti-money laundering program. The BSA contemplates information sharing by and between such financial institutions.

Where a financial institution has received information pursuant to section 314(b), such information may be shared with a foreign financial institution, such as a foreign affiliate or subsidiary, solely for the purposes identified in 31 C.F.R. § 1010.540(b)(4). Such sharing would not be afforded the safe harbor from liability described in 31 C.F.R. § 1010.540(b)(5) unless the receiving institution is a financial institution as defined at 31 C.F.R. § 1010.540(a)(1)(i). Furthermore, financial institutions should consider any relevant obligations arising under other U.S. legal authorities (including, but not limited to, the Right to Financial Privacy Act, the Gramm-Leach-Bliley Act, or state laws) and, as applicable, aspects of or obligations arising under foreign law, all of which are outside the scope of this guidance.

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May financial institutions that share information pursuant to section 314(b) file joint SARs?

FinCEN's SAR regulations allow for the submission of joint SARs by financial institutions.¹⁰ When financial institutions identify suspicious activity through collaboration pursuant to section 314(b), they may consider whether a joint SAR would be the most efficient way to provide highly useful information (including, as appropriate, joint supporting documentation) to law enforcement.

Financial institutions should keep in mind that section 314(b) does not relax the prohibition against SAR disclosures, nor does it otherwise address SAR confidentiality. Financial institutions participating in information sharing pursuant to section 314(b) remain prohibited from disclosing a SAR or any information that would reveal the existence of a SAR notwithstanding section 314(b).

10. All FinCEN SAR regulations include a rule of construction that accounts for the possibility of financial institutions filing joint SARs. See 31 C.F.R. §§ 1020.320(e)(1)(ii)(A)(2)(i) (banks), 1021.320(e)(1)(ii)(A)(2) (casinos and card clubs), 1022.320(d)(1)(ii)(A)(2) (money services businesses), 1023.320(e)(1)(ii)(A)(2)(i) (brokers or dealers in securities), 1024.320(d)(1)(ii)(A)(2) (mutual funds), 1025.320(e)(1)(ii)(A)(2) (insurance companies), 1026.320(e)(1)(ii)(A)(2)(i) (futures commission merchants and introducing brokers in commodities), 1029.320(d)(1)(ii)(A)(2) (loan or finance companies), 1030.320(d)(1)(ii)(A)(2) (housing government sponsored enterprises).

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However, financial institutions participating in section 314(b) information sharing that are considering filing or have filed a joint SAR may freely discuss the prospective or already filed joint SAR among themselves and share its contents.

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Participation in the Section 314(b) Program

How do financial institutions or associations of financial institutions participate in the section 314(b) program?

FinCEN's regulation (31 C.F.R. § 1010.540) sets forth the requirements that must be satisfied to benefit from section 314(b) safe harbor protection. A financial institution or association of financial institutions will only benefit from section 314(b) safe harbor protection if it follows the conditions for participation in the program:

Submit a Registration to FinCEN

Information regarding the section 314(b) program is available on FinCEN's website at www.fincen.gov/resources/section-314b.

Financial institutions and associations of financial institutions interested in participating in the section 314(b) program should:

- 1) Request access to the Financial Industry Portal ("FI Portal") by selecting **FI Access Request** at www.fincen.gov/resources/financial-institutions.
- 2) Once approved, visit the **FI Portal Login** at fiportal.fincen.gov and navigate to the **314(b)** tile and submit their section 314(b) registration. Registrations are processed automatically, and financial institutions and associations of financial institutions will have the option to generate an acknowledgment letter for their records.

Share Information with Other Section 314(b) Participants

Prior to sharing information under section 314(b), financial institutions and associations of financial institutions must take reasonable steps to verify that the other financial institution or association of financial institutions is also a section 314(b) registrant.

To facilitate the identification of section 314(b) program participants, the FI Portal contains a searchable directory of contact information for all participating financial institutions and associations of financial institutions. Financial institutions and associations of financial institutions may designate more than one person as their section 314(b) program point of contact.¹¹

11. Although a financial institution participating in the section 314(b) program must provide, at a minimum, one point of contact to FinCEN as part of its registration, other employees may participate in section 314(b) information sharing consistent with the financial institution's policies and procedures.

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Safeguard Shared Information and Use Only for AML/CFT Purposes

Financial institutions and associations of financial institutions must establish and maintain procedures to safeguard the security and confidentiality of shared information and must only use shared information for the purpose of:

- Identifying and, where appropriate, reporting on activities that may involve terrorist financing or money laundering (including activities potentially constituting SUA, such as fraud).
- Determining whether to establish or maintain an account, or to engage in a transaction.
- Assisting in compliance with anti-money laundering requirements.

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Updating Point of Contact Information and Additional Resources

Changes, updates, or deletions of current section 314(b) registration information can be made through the FI Portal. A detailed Section 314(b) Quick Reference Guide is also available on the FI Portal. For additional questions related to section 314(b) information sharing, FinCEN can be reached by submitting an inquiry at www.fincen.gov/contact, noting in the body of the message that the inquiry relates to section 314(b) information sharing.

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